

SENATE BILL 2091

By Crowe

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 1 and Title 49, Chapter 6, relative to
student retention.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-3115, is amended by deleting the section and substituting instead the following:

An LEA or public charter school may retain a student in third grade if the student has not shown a basic understanding of the curriculum and an ability to perform the skills required in the subject of reading or English language arts (ELA), as demonstrated by the student's grades or standardized test results.

SECTION 2. Tennessee Code Annotated, Section 49-1-905(d), is amended by deleting subdivision (4).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.